

26STCV05727 26STCV05727

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-16

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C310%2C07%2F16%2F2026

Source SHA-256: 09ffa8f49b3aa8b012a994195d3b5aeef7b4eb784a76d2d7e3ad57176a112e20

Case Number: 26STCV05727 Hearing Date: July 16, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 16, 2026

Case Name: Blue Hill Specialty Insurance Company v. Sarkisyan, et al.

Case No.: 26STCV05727

Matter: Demurrer

Moving Party: Ara Sarkisyan, Arutyun Fotolyan, and Sergei Arutunov

Responding Party: Blue Hill Specialty Insurance Company

Notice: OK

Ruling: The Demurrer is overruled.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Plaintiff Blue Hill Specialty Insurance Company ("Blue Hill") filed a Complaint for Declaratory Relief on February 20, 2026, seeking a judicial declaration that it has no duty to provide coverage or benefits for claim No. 24-4786528. The claim arises

from a May 7, 2024, vehicular collision involving a rideshare vehicle occupied by Defendants Ara Sarkisyan, Arutyun Fotolyan, and Sergei Arutunov.

Defendants Ara Sarkisyan, Arutyun Fotolyan, and Sergei Arutunov now demur to the entirety of the Complaint for failure to state sufficient facts. They argue that Blue Hill's Complaint consists only of legal conclusions and suspicions.

When considering demurrers, courts read the allegations liberally and in context, and "treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) It is error "to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

The Complaint adequately pleads that Blue Hill has no liability because Defendants staged the vehicle accident so as to submit a fraudulent insurance claim. Defendants merely raise a factual dispute, which is not appropriate for a demurrer.

The Demurrer is overruled.

An answer is to be filed within 10 days.

Moving party to give notice.